

- RAG Learning

2.2 Parliament

Politics — Edexcel (9PL0) — Component 2: UK Government, Section A

Parliament is the second topic in Component 2 Section A. The examinable core is the gap between Parliament's **formal powers**, which are considerable, and its **effective power**, which depends almost entirely on parliamentary arithmetic. Answers that assert Parliament is strong or weak without that conditional do badly.

Parliament — the Commons, the Lords and the Crown acting together as the legislature.

Confidence and supply — an agreement to support the government on confidence votes and budgets without joining it.

Salisbury Convention — the Lords does not block legislation implementing a manifesto commitment.

Parliamentary privilege — freedom of speech in proceedings, without fear of legal action.

Legislative bills — public, private members' and private bills.

Public bill committee — examines a specific bill line by line at committee stage.

Select committee — permanent body scrutinising a department's policy, administration and spending.

Backbencher — an MP holding no ministerial or shadow ministerial office.

Opposition — the largest party not in government, with allocated time and Short money.

Payroll vote — ministers and PPSs bound by collective responsibility to support the government.

1. Structure and role of the two Houses

	House of Commons	House of Lords
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Membership	650 MPs, directly elected in single-member constituencies	Appointed life peers and 26 Lords Spiritual; the remaining hereditary peers left on 29 April 2026; no cap on size
Term	Up to five years	Life
Legitimacy	Elected — the source of its primacy	Unelected — the source of its restraint
Key powers	Confidence, supply (financial privilege), primary legislation, removing a government	Revision, delay of up to about a year, scrutiny
Character	Adversarial, whipped, constituency-focused	Expert, less whipped, no constituency or re-election pressure

Functions of Parliament

- **Legislation** — only Parliament may make primary law.
- **Scrutiny** — select committees, questions, debates, the work of the opposition.
- **Representation** — constituency casework and the representation of interests in debate.
- **Legitimation** — parliamentary approval confers authority, including for taxation and, by convention, military action.
- **Recruitment** — Parliament supplies the pool from which ministers are drawn.

2. Comparative powers

The Commons has primacy, established by law and convention:

- **Parliament Acts 1911 and 1949** — the Lords may delay most public bills for around a year but cannot ultimately block them. Used rarely: the War Crimes Act 1991, the European Parliamentary Elections Act 1999, the Sexual Offences (Amendment) Act 2000 and the Hunting Act 2004 (and the Parliament Act 1949 itself was passed under the 1911 Act).
- **Financial privilege** — taxation and spending are for the Commons alone; the Lords may not amend money bills.

- **Salisbury Convention** — manifesto commitments are not blocked. Its status is questioned where no party has a Lords majority or where a government was elected on a minority of the vote.
- **Confidence** — only the Commons can remove a government.

Where the Lords is more effective

Freed from constituencies, re-election and the tightest whipping, and containing former judges, clinicians, scientists, senior officials and independent crossbenchers, the Lords scrutinises legislative detail more thoroughly than the Commons has time or incentive to. Government defeats there are frequent — running into the hundreds across a parliament — and many produce amendments the government accepts. The House of Lords Act 1999 is the cause: removing most hereditary peers left no party with a majority and gave the chamber greater confidence in its own legitimacy.

Exam Tip: The Lords paradox is the strongest judgement available on this topic: the chamber is useful *because* its members are not elected, since that is what supplies the expertise, independence and long view — and it lacks legitimacy for the same reason. Every reform that fixes the legitimacy problem removes the features that make it valuable. That explains why reform failed in 2003 and 2012.

3. The legislative process

Stage	What happens
First reading	Formal introduction; no debate
Second reading	Debate on the principle of the bill; the main division
Committee stage	Line-by-line examination by a public bill committee, whose membership reflects the party balance
Report stage	The whole House considers amendments made in committee
Third reading	Final debate; no amendments in the Commons

The other House	The same stages; amendments pass back in "ping-pong" until agreement
Royal assent	Given by convention; last refused in 1708

Types of bill

- **Public bills** — government legislation; the overwhelming majority of what passes.
- **Private members' bills** — introduced by backbenchers through the ballot, ten-minute rule or presentation. Very few become law without government time, and they are easily talked out. Notable exceptions include the Abortion Act 1967 and the Murder (Abolition of Death Penalty) Act 1965.
- **Private bills** — affecting particular bodies or localities.
- **Secondary legislation** — made by ministers under delegated powers; thousands of instruments a year with minimal scrutiny, which is a significant and under-examined transfer of law-making to the executive.

4. How Parliament interacts with the Executive

Scrutiny mechanisms

Mechanism	Strength	Weakness
Select committees	Permanent, expert, chairs and members elected since 2010; reports require a government response	Cannot amend legislation; recommendations are not binding
PMQs	High visibility; forces the PM to account weekly	Theatrical; rewards performance over scrutiny
Departmental questions	Regular, specific, on the record	Answers can be evasive; notice allows preparation

Urgent questions	Used far more since 2009; the Speaker can compel a minister to the chamber	Depends on the Speaker's willingness
Debates	Opposition days, Backbench Business Committee, emergency debates	Rarely binding on government
The Lords	Detailed revision; frequent defeats	Can be overridden under the Parliament Acts

The Wright reforms (2010)

The single most important strengthening of the Commons in recent decades. They introduced **election of select committee chairs** by the whole House and of members by party groups, removing the whips from the process, and created the **Backbench Business Committee** with control of a portion of Commons time. The effect was to create a parliamentary career path independent of ministerial patronage, which is why select committee influence has grown regardless of the size of the government's majority.

Why the executive dominates

- **Fusion.** Ministers are drawn from and sit in Parliament, and a government by definition commands a Commons majority.
- **The payroll vote.** Around 140 ministers and PPSs are bound to support the government before any argument is made.
- **Control of the timetable.** The government decides what is debated and when, and can guillotine debate through programme motions.
- **Patronage.** The power of appointment gives ambitious backbenchers reason to comply.
- **Party discipline.** The whips manage loyalty through persuasion, career consequence and party solidarity.

When Parliament is strong

Backbench independence has grown: rebellion rates have risen over several decades, the Wright reforms created an alternative career path, and small or absent majorities transfer leverage decisively. The 2017–19 parliament is the clearest modern illustration — a minority government was defeated

repeatedly, lost control of the order paper, and was compelled by statute to seek an extension it did not want.

Exam Tip: The decisive analytical point is that Parliament's power varies with **parliamentary arithmetic rather than with parliamentary design**. It is strongest when a government is weak and weakest when a government is strong — which is the opposite of what a constitutional check should do. Make that the judgement in any "how effectively does Parliament scrutinise" question.

5. Reform debates

- **An elected Lords** — supplies legitimacy, creates a rival mandate and the risk of deadlock. Failed in 2003 (no option commanded a Commons majority) and 2012 (withdrawn after backbench opposition).
- **Removing the Lords Spiritual** — the hereditary peers went in 2006 (House of Lords (Hereditary Peers) Act); the bishops are now the only non-appointed element left.
- **A cap on Lords membership** — the chamber had grown past 800 before the hereditary peers left in April 2006; with some of them returning as life peers and new appointments continuing, it remains large and there is still no statutory limit.
- **Strengthening select committees** — giving them powers over appointments or a formal role in legislation.
- **Reducing secondary legislation** — tightening the scrutiny of delegated powers.

Quick recall

- 650 MPs; life peers + 26 Lords Spiritual, no cap; hereditaries removed 2006
- Commons primacy: Parliament Acts 1911/1949, financial privilege, Salisbury Convention, confidence
- Parliament Acts used rarely — War Crimes 1991, European Parliamentary Elections 1999, Sexual Offences (Amendment) 2000, Hunting 2004 (plus the 1949 Act itself)
- Stages: first, second, committee, report, third, other House, ping-pong, royal assent

- Wright reforms 2010: elected select committee chairs; Backbench Business Committee
- Payroll vote ~140; government controls the timetable
- 2017–19: minority government lost control of the order paper — arithmetic, not design
- Lords paradox: useful because unelected, illegitimate for the same reason